ENTERPRISE SOFTWARE-AS-A-SERVICE (SaaS) SUBSCRIPTION AGREEMENT

Cloud Platform Infrastructure, HIPAA & Security Specifications

Effective Date: February 1, 2026

BETWEEN: CloudVault Systems Inc. ("Provider") AND Premier Healthcare Services Corp. ("Subscriber")

1. SUBSCRIPTION GRANT AND AUTHORIZED USERS

1.1 Service Grant. Provider grants Subscriber a non-exclusive, worldwide, subscription-based right to access and use the CloudVault Enterprise Clinical Suite during the Subscription Term.

1.2 User Seats. The subscription includes five hundred (500) named user seats and five million monthly API transactions. Additional seats may be added under supplemental orders.

1.3 Access Credentials. Subscriber is responsible for maintaining strict confidentiality of user credentials and multi-factor authentication (MFA) enforcement.

2. DATA PRIVACY, HIPAA COMPLIANCE & SECURITY

2.1 Patient Data Protection. Provider acknowledges that Subscriber Data may contain Protected Health Information (PHI) governed by HIPAA and the HITECH Act.

2.2 Business Associate Agreement. Contemporaneously with this Agreement, parties shall execute the Standard HIPAA Business Associate Agreement ('BAA') incorporated herein by reference.

2.3 Data Encryption. Provider warrants all Subscriber Data is encrypted at rest using AES-256 encryption and in transit using TLS 1.3 protocol standards.

3. SERVICE LEVEL AGREEMENT (SLA) & UPTIME CREDITS

3.1 99.95% Availability Guarantee. Provider guarantees the CloudVault production environment shall maintain minimum monthly uptime of 99.95%, excluding scheduled maintenance windows.

3.2 Tiered Downtime Credits. If uptime falls below 99.95%, Subscriber receives 10% credit; below 99.0%, Subscriber receives 25% credit; below 98.0%, Subscriber receives 50% fee credit.

3.3 Chronic Failure Right. If uptime falls below 98.0% in any two consecutive months, Subscriber may terminate this Agreement immediately without penalty and receive a prorated refund.

4. SUBSCRIPTION FEES AND BILLING

4.1 Annual Fee. Subscriber shall pay an annual enterprise subscription fee of $180,000, invoiced annually in advance with Net 30 payment terms.

4.2 Tax Exemption. Fees exclude applicable sales, use, or value-added taxes, which shall be invoiced unless Subscriber provides a valid statutory tax exemption certificate.

5. LIMITATION OF LIABILITY & IP INDEMNITY

5.1 Liability Cap. Provider's total aggregate liability under this Agreement shall not exceed two times (2x) the total annual subscription fee paid by Subscriber.

5.2 IP Infringement Indemnity. Provider shall defend Subscriber against any third-party claim asserting that CloudVault software infringes any patent, copyright, or trade secret.

6. TERM, DATA RETRIEVAL AND TERMINATION

6.1 Subscription Term. Initial term of one (1) year, automatically renewing for successive one-year terms unless either party gives sixty (60) days advance non-renewal notice.

6.2 Post-Termination Data Export. Upon termination, Provider shall maintain Subscriber Data available for secure export in standard format for sixty (60) days without additional charge.

7. GOVERNING LAW AND JURISDICTION

7.1 Governing Law. This Agreement is governed by the laws of the State of California, without regard to conflict of laws principles.

7.2 Jurisdiction. Parties consent to exclusive personal jurisdiction and venue in the state and federal courts located in San Francisco County, California.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Authorized Representative
Date: October 1, 2025

Authorized Representative
Date: October 1, 2025